

RESOLUTION NO. _____

Entitled: A RESOLUTION AUTHORIZING SUBMISSION OF A PRE-APPLICATION FORM TO THE STATE LOAN AND INVESTMENT BOARD FOR A LOAN THROUGH THE STATE REVOLVING FUND ON BEHALF OF THE CHEYENNE GOVERNING BODY FOR THE PURPOSE OF DESIGN AND CONSTRUCTION OF A WETLAND AND STORMWATER QUALITY FACILITY.

WHEREAS, the Governing Body for the City of Cheyenne desires to participate in the State Revolving Fund program to assist in financing this project; and

WHEREAS, the Governing Body for the City of Cheyenne recognizes the need for the project; and

WHEREAS, this project will address the 303(d) listing of Crow Creek for excess bed load material and *E.coli* impairments; and

WHEREAS, the State Revolving Fund requires that certain criteria be met, as described in the State Loan and Investment Board's Rules governing the program, and this application meets those criteria; and

WHEREAS, this project qualifies as green infrastructure and is eligible for 25% loan forgiveness and 75% zero interest for 20 years; and

WHEREAS, the good faith engineering estimate for this project is \$4,265,000, and the Governing Body of the City of Cheyenne requests a loan of \$1,000,000; and

WHEREAS, the Governing Body of the City of Cheyenne plans to repay the requested State Revolving Fund loan from the 6th Penny Sales Tax Fund; and

WHEREAS, the balance of the cost of the project will be paid through funds from any combination of the following sources: EPA-319 Non-Point Source Pollution grant, CDBG Infrastructure funding, EPA Brownfield Remediation Revolving Loan Fund grant, Economic Development Authority grant, and EPA Brownfield Remediation grants; and

WHEREAS, loan funding for this project will be considered by the State Loan and Investment Board at its meeting on June 6, 2013.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE THAT:

A loan application in the amount of \$1,000,000 be submitted to the State Loan and Investment Board for consideration at the State Loan and Investment Board meeting to assist in funding the West Edge Water Quality and Wetland Facility, through the State Revolving Fund.

BE IT FURTHER RESOLVED, that Bob Bradshaw and Cindy Schneider are hereby designated as the authorized representatives of the City of Cheyenne to act on behalf of the Governing Body on all matters relating to this loan application, and that the Mayor is authorized to sign an agreement with the State, should the City be awarded funding through the State Revolving Fund program.

PASSED APPROVED AND ADOPTED THIS 25th day of March 2013.

Richard L. Kaysen, Mayor

(SEAL)
Attest

Carol Intlekofer, City Clerk

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